CHAPTER 18 President

Articles 52 to 78 in Part V of the Constitution deal with the Union executive.

The Union executive consists of the President, the Vice-President, the Prime Minister, the council of ministers and the attorney general of India.

The President is the head of the Indian State. He/she is the first citizen of India and acts as the symbol of unity, integrity and solidarity of the nation.

ELECTION OF THE PRESIDENT

The President is elected not directly by the people but by members of electoral college consisting of:

1. the elected members of both the Houses of Parliament;
2. the elected members of the legislative assemblies of the states; and
3. the elected members of the legislative assemblies of the Union Territories of Delhi and Puducherry[1].

Thus, the nominated members of both the Houses of Parliament, the nominated members of the state legislative assemblies, the members (both elected and nominated) of the state legislative councils (in case of the bicameral legislature) and the nominated members of the Legislative Assembly of Puducherry do not participate in the election of the President. The Legislative Assembly of Delhi has no nominated members.

The 104th Constitutional Amendment Act of 2019 has not extended further the nomination of Anglo-Indian members to the Lok Sabha and State Legislative Assemblies. In other words, the amendment discontinued the provision of special representation of the Anglo-Indian community in the Lok Sabha and State Legislative Assemblies by nomination. Consequently, this provision ceased to have effect on the 25th January 2020.

Further, where an assembly is dissolved, the members cease to be qualified to vote in the presidential election, even if fresh elections to the dissolved assembly are not held before the presidential election.

The Constitution provides that there shall be uniformity in the scale of representation of different states as well as parity between the states as a whole and the Union at the election of the President. To achieve this, the number of votes which each elected member of the legislative assembly of each state and the Parliament is entitled to cast at such election shall be determined in the following manner:

1. Every elected member of the legislative assembly of a state shall have as many votes as there are multiples of one thousand in the quotient obtained by dividing the population of the state by the total number of the elected members of the assembly[2]. This can be expressed as: